

REVENUE MEMORANDUM CIRCULAR NO. 103-2024 issued on September 12, 2024 circularizes Republic Act (RA) No. 11999, otherwise known as the "Bulacan Special Economic Zone and Freeport Act", which lapsed into law on June 13, 2024 in accordance with Article VI, Section 27 (1) of the 1987 Constitution.

To ensure sufficient funds, the Bulacan Special Economic Zone and Freeport Act (BEZA) and the affected Local Government Units (LGUs) shall be entitled to a share in the Special Corporate Income Tax under Title XIII of the Tax Code of 1997, as amended, from all registered business enterprises in the BEZA. For this purpose, the said Corporate Income Tax collected shall be divided as follows:

- a. Forty percent (40%) to the National Government (NG), which shall be directly remitted to the NG: *Provided*, That the revenue sharing under this section shall be considered compliance with Section 284 of RA No. 7160, as amended, and shall no longer be further divided for purposes of the National Tax Allotment;
- b. Twenty percent (20%) to the BEZA, earmarked for infrastructure development projects of the BEZA as determined by its Board of Directors, consistent with the principles and purposes of this Act; and
- c. Forty percent (40%) to the concerned LGUs: *Provided*, That the local government share from revenues derived from BEZA-registered locators who availed of incentives under RA No. 11534, in component cities or municipalities shall be allocated among the LGUs of the Bulacan EcoZone using the formula prescribed under Section 285 of RA No. 7160, as amended.

The share of the NG shall be paid by the locator directly to the BIR. The share of the LGUs and the BEZA shall be collected by the latter. The BEZA shall remit the local government share on a quarterly basis.